

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 4454

By: Newton

6 AS INTRODUCED

7 An Act relating to medical marijuana; amending 63
8 O.S. 2021, Section 423, as last amended by Section 8,
Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section
9 423), which relates to medical marijuana processors;
10 providing certain restrictions on edible medical
marijuana products; providing packaging restrictions
11 for edible medical marijuana products; defining
terms; and providing an effective date.

12
13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 63 O.S. 2021, Section 423, as last
15 amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025,
16 Section 423), is amended to read as follows:

17 Section 423. A. The Oklahoma Medical Marijuana Authority shall
18 make available on its website in an easy-to-find location an
19 application for a medical marijuana processing license. The
20 Authority shall be authorized to issue two types of medical
21 marijuana processor licenses based on the level of risk posed by the
22 type of processing conducted:

- 23 1. Nonhazardous medical marijuana processor license; and
24 2. Hazardous medical marijuana processor license.

1 The application fee for a nonhazardous or hazardous medical
2 marijuana processor license shall be paid by the applicant in the
3 amounts provided for in Section 427.14 of this title. A method of
4 payment shall be provided on the website of the Authority. The
5 Authority shall have ninety (90) business days to review the
6 application; approve, reject, or deny the application; and send the
7 approval, rejection, or denial letter stating the reasons for the
8 rejection or denial to the applicant in the same method the
9 application was submitted to the Authority.

10 B. The Authority shall approve all applications which meet the
11 following criteria:

12 1. The applicant must be twenty-five (25) years of age or
13 older;

14 2. The applicant, if applying as an individual, must show
15 residency in this state;

16 3. All applying entities must show that all members, managers,
17 and board members are Oklahoma residents of this state;

18 4. An applying entity may show ownership of nonstate residents,
19 but that percentage ownership may not exceed twenty-five percent
20 (25%);

21 5. All applying individuals or entities must be registered to
22 conduct business in this state; and

23 6. All applicants must disclose all ownership interests in the
24 processing operation.

1 Applicants with a nonviolent felony conviction in the last two
2 (2) years, any other felony conviction in the last five (5) years,
3 inmates in the custody of the Department of Corrections or any
4 person currently incarcerated shall not qualify for a medical
5 marijuana processing license.

6 C. 1. A licensed processor may take marijuana plants and
7 distill or process these plants into concentrates, edibles, and
8 other forms for consumption.

9 2. The Executive Director of the Authority shall make available
10 a set of standards which shall be used by licensed processors in the
11 preparation of edible marijuana products. The standards should be
12 in line with current food preparation guidelines. No excessive or
13 punitive rules may be established by the Executive Director.

14 3. Up to two times a year, the Authority may inspect a
15 processing operation and determine its compliance with the
16 preparation standards. If deficiencies are found, a written report
17 of the deficiency shall be issued to the licensed processor. The
18 licensed processor shall have one (1) month to correct the
19 deficiency or be subject to a fine of Five Hundred Dollars (\$500.00)
20 for each deficiency.

21 4. A licensed processor may sell marijuana products it creates
22 to a licensed dispensary or any other licensed processor. All sales
23 by a licensed processor shall be considered wholesale sales and
24 shall not be subject to taxation.

1 5. Under no circumstances may a licensed processor sell
2 marijuana or any marijuana product directly to a licensed medical
3 marijuana patient or licensed caregiver. However, a licensed
4 processor may process cannabis into a concentrated form for a
5 licensed medical marijuana patient for a fee.

6 6. Licensed processors shall be required to complete a monthly
7 yield and sales report to the Authority. This report shall be due
8 on the fifteenth of each month and shall provide reporting on the
9 previous month. This report shall detail the amount of marijuana
10 and medical marijuana products purchased in pounds, the amount of
11 marijuana cooked or processed in pounds, and the amount of waste in
12 pounds. Additionally, this report shall show total wholesale sales
13 in dollars. The Authority shall have oversight and auditing
14 responsibilities to ensure that all marijuana being processed is
15 accounted for.

16 7. Edible medical marijuana products processed, produced,
17 packaged, or transferred by licensed medical marijuana processors
18 shall not contain more than ten (10) milligrams of any
19 tetrahydrocannabinol and packages shall not contain more than ten
20 (10) servings or one hundred (100) milligrams of any
21 tetrahydrocannabinol per package. Edible medical marijuana products
22 intended to be consumed as a drink or beverage shall not contain
23 more than a total of twenty (20) milligrams of any
24

1 tetrahydrocannabinol in a single container. Edible medical
2 marijuana products shall not:

- 3 a. be attractive to children. As used in this
4 subparagraph "attractive to children" means the use of
5 any image or words designed or likely to appeal to
6 persons younger than eighteen (18) years of age
7 including, but not limited to, cartoons, toys,
8 animals, food, or depictions of persons younger than
9 eighteen (18) years of age, any other likeness to
10 images, characters, or phrases that are popularly used
11 to advertise to persons younger than eighteen (18)
12 years of age, or any reasonable likeness to
13 commercially available candy,
14 b. be manufactured in the shape of humans, cartoons, or
15 animals;
16 c. be manufactured in a form that bears any reasonable
17 resemblance to products available for consumption as
18 commercially available candy, or
19 d. contain any color additives.

20 D. The Authority shall oversee the inspection and compliance of
21 licensed processors producing products with marijuana as an
22 additive. If it becomes permissible under federal law, marijuana
23 may be moved across state lines.

1 E. Any device used for the processing or consumption of medical
2 marijuana shall be considered legal to be sold, manufactured,
3 distributed and possessed. No merchant, wholesaler, manufacturer or
4 individual may be unduly harassed or prosecuted for selling,
5 manufacturing or possessing marijuana paraphernalia.

6 SECTION 2. This act shall become effective November 1, 2026.
7

8 60-2-13972 GRS 01/10/26
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24